ZEPHANIAH DHLAMINI

And

SIPHOSAMI PATRICK MALUNGA

And

CHARLES MOYO

And

KERSHELMAR FARMS (PRIVATE) LIMITED

Vs

MINISTER OF LANDS, AGRICULTURE, WATER & RURAL RESETTLEMENT

And

THE CHIEF LANDS OFFICER FOR MATABELELAND NORTH

And

THE REGISTRAR OF DEEDS N.O

And

GATSHA MAZITHULELA

And

DUMISANI MADZIVANYATHI

And

REASON MPOFU

And

MINISTER OF STATE FOR MATABELELAND NORTH

And

MSWELANGUBO FARM (PRIVATE) LIMITED

And

OBERT MOSES MPOFU

And

LEGINA MUCHIMBA

And

LOVEMORE JIYANE

IN THE HIGH COURT OF ZIMBABWE
NDLOVU J 08 NOVEMBER 2024 & 30 JUNE 2025
BULAWAYO

Application for a Declaratory Order.

Adv. T. Mpofu for the 1st, 2nd, 3rd & 4th applicants
Ms J. Mugova for the 4th respondent.
M. Mahaso, for the 5th respondent.
N. Ndlovu, for the 6th, 8th & 9th respondents
K. Ncube for the 10th & 11th respondents
1st respondent is barred
No Appearance for the 2nd, 3rd & 7th respondents.

NDLOVU J: This is an application for a declaratory order, in which the applicants seek that it be declared that the acquisition of their farm is void for being at variance with provisions of the law, particularly section 72 of the Constitution of Zimbabwe and section 3 of the Administrative Justice Act, Chapter 10.28 ***[AJA].*** The first, second, and third applicants are Directors and Shareholders of the fourth applicant, a company incorporated under the laws of Zimbabwe. The applicants are the beneficial owners of the farm, which is held in the name of the fourth applicant. They exercise beneficial ownership by owning the entire issued share capital of the fourth applicant, which they acquired in 2017 from Jeffrey Swindels, who previously held it. The fourth applicant is their alter ego, the vehicle through which they have established a partnership to conduct agricultural activities at the farm.

RELIEF SOUGHT.

The applicants pray that it be declared that.

[i]. *The Notice of Acquisition of Agricultural Land under Section 72(2) of the Constitution of Zimbabwe being General Notice 3042 of 2020 appearing in the Zimbabwe Gazette on the 18th of December 2020 relating to the following pieces of land held under the following deeds of title:*

Deed of Transfer 1980/90, registered in the name of Kershelmar Farms (Private) Limited, in respect of certain piece of land situated in the district of Nyamandlovu being subdivision A of Subdivision B of Umguzan Block,

measuring one hundred and ninety—five comma eight zero nine five (195,8095) hectares, and,

Deed of Transfer 1980/90, registered in the name of Kershelmar Farms *(Private) Limited, in respect of certain piece of land situated in the district of Nyamandlovu, being subdivision C of Subdivision B of Umguzan Block, measuring three hundred and fifty-eight comma one seven six eight (358,768) hectares, is null and void for want of compliance with provisions of section 72 of the Constitution of Zimbabwe, 2013.*

[ii]. Any Offer Letter issued on the basis of the purported acquisition is null and void.

[iii]. Costs of this application shall be borne by the respondents on the higher scale of legal practitioner and own client.

BACKGROUND.

It is a common cause that on June 14, 2021, the Chief Lands Officer, Mat. The North [2nd respondent] called the applicants and informed them that their farm had been gazetted for acquisition by the 1st respondent. The acquisition was published in the Zimbabwe Government Gazette of 18 December 2020. In acquiring the farm, the Minister did not invite input or representation from the 4th respondent, or its owners, who naturally have a substantial interest in the farm. The applicants were not formally informed by the administrative authority [the Minister and 1st respondent] of his intention to acquire the farm before the acquisition was gazetted.

THE HEARING.

The first respondent, the leading participant in this matter, is currently out of court due to a bar. The second and seventh respondents did not file any opposition to this application. The remaining respondents took several preliminary points, and they are;

1. ***Jurisdiction.***
2. ***No proper application.***
3. ***No application by the 4th applicant.***
4. ***Dirty hands.***
5. ***Locus standi.***

6. ***Review grounds.***
7. ***Unlawful simulation of a transaction.***
8. ***Internal remedies.***
9. ***Constitutional invalidity.***
10. ***Founding affidavit.***

I will dispose of them one by one in the following order.

JURISDICTION.

The respondents who moved this point argued that there is no law providing for the nullification of a lawful acquisition of agricultural land in this country. Therefore, this court is without jurisdiction to entertain this application. That cause of action is ousted by Section 72 of the Constitution. Section 72 of the Constitution has an ouster clause, which prohibits a court of law from reviewing the decision of an administrative authority to acquire and gazette land. The applicants have counter-argued that for the Constitution to be invoked in its ouster, the acquisition must have been made in accordance with the provisions of the Constitution. If an acquisition has not been made in terms of the Constitution, the ouster is not activated.

One must, of necessity, consider the cause of action in this matter. The applicants are not challenging the fact of the acquisition, but rather how the 1st respondent acquired the farm. The ouster clause in the Constitution is not set in motion in this matter. This preliminary point is without merit and is duly dismissed.

NO PROPER APPLICATION.

The respondents have argued that no lawful transfer of the land took place between the 4th respondent on one hand and the 1st to the 3rd respondents on the other because there was no Certificate of No Present Interest in the acquisition of rural land in violation of section *4[1] of the Land Acquisition, Disposal of Rural Land Regulations 1999,* which is a prerequisite to transfer of any land between individuals.

I find this to be an unnecessary attempt to confuse matters by straying into issues that are not before this court for determination. The first three applicants bought shares in the 4th applicant. That process has not been litigated upon. That sale has not been declared null and void. What is before this court is whether or not he followed due process when he acquired the farm. The preliminary point taken is without merit and is dismissed.

NO APPLICATION BY THE 4TH APPLICANT.

The respondents argued that there is no Board Resolution by the 4th Applicant authorising this litigation. The 4th applicant is therefore not before the court. This is true. When challenged, the applicants ought to have produced such a resolution. They argued otherwise, but for reasons soon to appear hereunder, their argument is of no moment in the present circumstances. It is trite that a preliminary point must be capable of terminating the proceedings if upheld. In this case, a Shareholder and Director are properly before this court. Shareholders are individually or severally allowed at law to enforce their rights. Even if the 4th applicant is out of court, this finding therefore does not dispose of the matter. Accordingly, I dismiss the point *in limine* taken.

DIRTY HANDS.

The respondents have argued that the applicants' hands are proverbially dripping with blood, as they did not comply with the 1999 Regulations. I have dismissed the point relating to the 1999 Regulations above. With equal measure, I dismiss it now.

LOCUS STANDI

The respondents have argued that the applicants lack *locus standi* in this matter because the farm belongs to the State as a result of its compulsory acquisition, and the applicants are not holders of offer letters; therefore, they lack the legal interest necessary to confer *locus standi* on them. In any case, the sale agreement between the owners of the 4th applicant and the 1st to the 3rd applicants is a legal nullity.

The applicants have argued the contrary. Their argument is essentially that every governmental action must be founded on law and, as such, is subject to being challenged by anyone alleging that the governmental action is not in accordance with the law and that the action complained about directly affects them. That alone creates *locus standi*. In this case, it is the applicants who have the right to question the validity of the farm's acquisition. The cause of action in this matter is the legality of the process of the acquisition and not the legality of the fact of the acquisition. As a result, I dismiss the preliminary point as lacking merit.

REVIEW GROUNDS.

The 5th respondent has argued that some of the grounds on which the applicants base this application are bad at law in that they do not meet the requirements of a declaratur. They are review grounds as they allege abuse of power, irrational decision-making, non-compliance with due process, and malice, falsehoods, improper considerations, and gross irregularity committed by the 1st respondent. This application is a review mischievously clothed as an application for a declaratory order.

Unlike a review application, an application for a declaratory order does not have grounds. The relief sought can be granted through a declaratory application. In any case, section 4 of AJA and section 14 of the High Court Act can be enjoined. *See* ***Marasha v Old Mutual 2000 [2] ZLR 197.*** I dismiss the point taken.

UNLAWFUL SIMULATION OF A TRANSACTION.

The basis of the attack on the nature of the transaction between the previous owners of the 4th applicant and the 1st to the 3rd applicants appears to be that the 1st to the 3rd applicants intended to purchase a farm to venture into a new brand of farming. They, however, bought shares in the 4th applicant from Mr Swindels. Zimbabwe has a robust legal framework that outlines procedures for the sale and purchase of rural land between private individuals. The sale of shares was an attempt to conceal the true nature of the transaction between Mr Swindels and the other applicants, which was a sale of land. There lies the simulation. The sale of shares is shaped to disguise the true nature of the agreement between the parties. The Court should refrain from considering the merits of this application, as doing so would lend legitimacy to this illegal sale of land.

The applicants have counter-argued that this issue lies in the merits of the application. They further argue that this application is founded on administrative law principles. My understanding of the 5th respondent's argument is that if one intends to buy milk, it is illegal for them to buy a cow. This point is not before this court. I dismiss this point.

INTERNAL REMEDIES/AVOIDANCE

The argument by the 6th, 8th, and 9th respondents, in particular, has been that S.I. 62/20 sets out a procedure for remedies for indigenous farmers who have suffered the acquisition of

their land. They argue that the applicants have not exhausted the internal remedies to address their cause and secure restoration of title over the land and compensation. This dispute is therefore not ripe for determination by this court. This preliminary point highlights a misunderstanding of the complaint by the applicants in this court, specifically regarding the alleged violation of the AJA. It does not relate to compensation for improvements. I dismiss this point without further discussion.

CONSTITUTIONAL INVALIDITY.

The 10th and 11th respondents have argued that the applicants, by this application, are seeking a declaration of Constitutional Invalidity. Because that is the relief they are seeking, *Rule 10[1]* of the Rules of this Court comes into relevance, in that the applicants ought to have given notice prescribed by *Rule 10[2]* to the Registrar of this Court to afford interested individuals the opportunity to join in. Without complying with *Rule 10[2],* this application is improperly before this court. *Rule 10* provides in part as follows.

> **Friend of court**
>
> *10. (1) Any person raising a constitutional issue in an application or action shall give notice thereof to the registrar at the time of filing the application or pleading.*
>
> *(2) Such notice shall contain a clear and succinct description of the constitutional issue concerned.*
>
> **……..**
>
> *(9) The court may dispense with any of the requirements of this rule if it is in the interests of justice to do so.*

The applicants have argued to the contrary, stating that what is or ought to be clear in this application is that this is not a Section 85 of the Constitution application. As such, non-compliance with *Rule 10* is of no consequence, and even if compliance with *Rule 10* were relevant, non-compliance with it would not result in invalidation under *Rule 10[9]*, which grants the court discretion. Invalidity does not sit with discretion. I agree, the point taken is without merit and is duly dismissed.

FOUNDING AFFIDAVIT INVALIDITY.

The respondents have argued that the affidavit by Zephania Dlamini is invalid because it is undated as to when it was sworn. The same applies to the supporting affidavit by the 3rd applicant. They aver that this is a fatal irregularity. Accordingly, there is no valid Founding Affidavit to support the application. This observation is accurate. Zephania Dlamini and Charles Moyo's purported affidavits are not affidavits by operation of the law. An affidavit must be dated to show when the oath was taken. An affidavit styled a supporting affidavit can only be valid if the affidavit it purports to support is valid.

The matter, however, does not end there. There is one valid affidavit by Siphosami Malunga. That affidavit does not purport to be a supporting affidavit. The 2nd applicant has a substantial legal interest in the matter. He is an interested party. His interest as a shareholder and director of the 4th respondent, who is the owner of the farm, is unequivocal. He has made the deposition in that capacity and to enforce his rights as a shareholder. He sets out the complaint and prays for an order per the Draft Order. The matter is properly before the court, notwithstanding the 1st, 3rd, and 4th respondents being absent. The point *in limine* is dismissed to the extent necessary.

THE MERITS

The applicants argue that the acquisition of the farm is invalid and must be set aside for the following reasons:

The farm is held in the name of a company, owned by the 2nd applicant and two other individuals. The farm owners are indigenous Zimbabweans. They are black people. The liberation struggle was waged so that black people could reclaim the land. They, however, purchased this farm. The fact that the beneficial ownership of this land is in the hands of black Zimbabweans means that its acquisition is void. It is illegal. It is irrational in that it cannot satisfy the constitutional imperatives. It is contrary to the principle of legality. The acquisition is not based on the constitution's authority; nothing can depend on it.

The farm was not acquired for constitutional purposes. This is not, and cannot be, the purpose of land redistribution, and it undoubtedly has the effect of undermining Zimbabwe's status as an attractive investment destination. That taints the acquisition and renders it invalid. That the 2nd applicant is considered a government critic is of no moment. A policy

that says some Zimbabweans can lose private property simply because they are critics of the ruling establishment is downright uncouth and belongs to the dark ages. The irrationality inherent in the process is unmistakable and cannot go unnoticed.

Acquired land must be given to landless indigenous Zimbabweans. How can land be taken from Indigenous Zimbabweans and be parcelled out to other Zimbabweans? Are those beneficiaries more Zimbabwean than the 2nd applicant and the two others who jointly own the farm? The decision to acquire the farm was arbitrary, malicious, and capricious. It cannot stand as a valid administrative decision and is void.

Before the land was acquired, the first respondent was aware of the applicants' interests. However, he did not allow the applicants to address him during his contemplated course before making a decision that was harmful to their interests. The farm owners were entitled to due process. The first respondent should have advised them that the acquisition of their land was contemplated, regardless of his views on the existence or extent of their rights. Due process required that the applicants be allowed to address issues about the farm and its acquisition. There is a valid sale of shares agreement, which the first respondent cannot ignore. First, the respondent cannot usurp the role of a court and purport to determine the validity of an agreement. He ought to have approached the court first if he had doubted the process through which the ownership of the farm exchanged hands. There is a need for an adjudicative process where authorities entertain any suspicion. Without any proceedings, they cannot conclude in the comfort of their offices that a fraud occurred. The constitution must have both meaning and effect. Those issues are of fundamental importance. That is what due process demands. By failing to follow due process, the first respondent denied the farm owners administrative rights to fair administrative conduct.

This is a proper case for the relief sought. The applicants' rights are established. The relief sought is the only meaningful remedy in the circumstances. The purported acquisition is invalid and must be set aside.

ISSUES FOR DETERMINATION.

1. Whether or not the acquisition of the farm appearing in the Zimbabwe Gazette on the 18th of December 2020 is null and void for want of compliance with the provisions of the law.

2. Whether or not any offer letter issued on the basis of the purported acquisition is null and void.

3. Whether or not this is a case for a declaratory order.

THE LAW

The Constitution of Zimbabwe provides as follows.

68 Right to administrative justice

(1) Every person has a right to administrative conduct that is lawful, prompt, efficient, reasonable, proportionate, impartial and both substantively and procedurally fair…..

(3) An Act of Parliament must give effect to these rights, and must—

(a) provide for the review of administrative conduct by a court or….

72 Rights to agricultural land

(1) *In this section* ***……***

(2) *Where agricultural land. or any right or interest in such land. is required for a public purpose. Including-*

(a) *settlement for agricultural or other purposes;*

…..

the land. right or interest may be compulsorily acquired by the State by notice published in the Gazette identifying the land. right or interest. whereupon the land. right or interest vests in the State with full title with effect from the date of publication of the notice.

…..

(7) In regard to the compulsory acquisition of agricultural land for the resettlement of people in accordance with a programme of land reform, the following factors must be regarded as of ultimate and overriding importance—

(a) under colonial domination the people of Zimbabwe were unjustifiably dispossessed of their land and other resources without compensation;

(b) the people consequently took up arms in order to regain their land and political sovereignty. and this ultimately resulted in the Independence of Zimbabwe in 1980.

(c) the people of Zimbabwe must be enabled to re-assert their rights and regain ownership of their land:

The Administrative Justice Act, Chapter 10, 28 provides as follows;

1. ***Interpretation and application***

(1) *In this Act…*

"administrative authority" means any person who is…

(c) a Minister…who has the lawful authority to carry out the administrative action concerned;

"(2) The provisions of this Act shall be construed as being in addition to, and not as limiting, any other right to appeal against, bring on review or apply for any other form of relief in respect of any administrative action to which this Act applies.

3. Duty of administrative authority

(1) An administrative authority which has the responsibility or power to take any administrative action which may affect the rights, interests, or legitimate expectations of any person shall—

(a) act lawfully, reasonably and in a fair manner; and…..

(2) In order for an administrative action to be taken in a fair manner as required by paragraph (a) of subsection (1), an administrative authority shall give a person referred to in subsection (1)—

(a) adequate notice of the nature and purpose of the proposed action; and

(b) a reasonable opportunity to make adequate representations; and ….

4 Relief against administrative authorities

(1) Subject to this Act and any other law, any person who is aggrieved by the failure of an administrative authority to comply with section three may apply to the High Court for relief.

(2) Upon an application being made to it in terms of subsection (1), the High Court may, as may be appropriate—

(a) confirm or set aside the decision concerned;

(b) refer the matter back to the administrative authority concerned for consideration or reconsideration;…..

(e) give such directions as the High Court may consider necessary or desirable to achieve compliance by the administrative authority with section three…"

The Land Commission Act (Chapter 20:23) provides as follows;

Offer Letters.

23. "The Minister may, subject to section seventeen, issue offer letters, leases, deeds of grant and permits in respect of Gazetted or other State land."

APPLICATION.

The Minister whose conduct is the subject of this litigation is not before the court. The second and seventh respondents have not filed any opposing papers. This court is therefore deprived of the reasoning by the State functionaries in acting in the manner they did in acquiring this farm. None of the present respondents can answer the challenge to the acquisition process. They did not make that decision. As a result, they are not central to or helpful in resolving the issues that require determination.

Central to the resolution of this matter is the decision on whether or not the 1st respondent followed the law before the acquisition of the farm. The complaint is that he did not. The applicant is not challenging the legality of the acquisition itself, but rather the legality of the acquisition process.

The absence of state functionaries, however, is not a licence to grant relief sought without scrutiny, especially in the circumstances of this case, wherein some people have been offered the same land acquired through the controverted process and stand to be deprived of what they had been provided.

Whether or not the acquisition of the farm appearing in the Zimbabwe Gazette on the 18th of December 2020 is null and void for want of compliance with the provisions of the law.

Section 3 of the Administrative Justice Act is clear on how an administrative authority must proceed when taking administrative actions that affect an individual's interests. AJA is a statute of critical importance to those charged with making decisions on behalf of the State. Its importance lies in the fact that it breathes life into section 68 of the Constitution by operationalising it. The principles provided for in the Constitution and AJA should be invoked together with the common law principles of review when administrative conduct, such as the present one, is put into question. The invocation of these principles requires the court to grant a declaratory order once it is satisfied that the respondent's action is not in accordance with the grundnorm and that it was irrational in the circumstances of the case.

It has not been denied that, in acquiring the farm as he did, the Minister did not solicit input or representation from the interested parties. This common cause position resolves the matter. Taking land belonging to black Zimbabweans who acquired it for value, so that it is given to other black Zimbabweans for free, is not only irrational but also goes against the constitutional and statutory imperatives in this country.

Rationality concerns the relationship between means and ends. It also has a procedural element. The process by which the decision is made must also be rational. Rationality means the evidence and information must support a decision by the administrative authority. It requires that a decision be objectively capable of furthering the purpose for which the power was given and for which the decision was purportedly taken. *See* **C Hoexter's Administrative Law in South Africa,** 2nd Edition.

Carephone (Pty) Ltd* v *Marcus NO and Otrs 1999 (3) SA 304 (LAC).

Rationality is a minimum threshold requirement applicable to the exercise of all public power by members of the executive and other functionaries. Action that fails to pass this threshold is inconsistent with the requirements of our Constitution and, therefore, unlawful.

The rule of law requires that the exercise of public power by State functionaries should not be arbitrary. Decisions must be rationally related to the purpose for which the power was given; otherwise, they are, in effect, arbitrary. To pass constitutional scrutiny, the exercise of public power by government officials must, at the very least, comply with this requirement. If it does not, it falls short of the standards demanded by our law. *See Nyambirai* **v** *National Social Security Authority and Anor* 1995 (2) ZLR I SC.

Pharmaceutical Manufacturers Association of SA and Others, In Re. Ex Parte Application of President of the RSA and Others 2000 (3) BCLR 241 (CC).

It has not been denied that, in acquiring the farm as he did, the Minister did not solicit input or representation from the interested parties. This common cause position resolves the matter. Taking land belonging to black Zimbabweans who acquired it for value, so that it is given to other black Zimbabweans for free, is not only irrational but also goes against the constitutional and statutory imperatives in this country. The acquisition of the farm was therefore not preceded by adherence to the provisions of the Constitution, AJA and the common law. The first respondent must yield to the law. The acquisition cannot stand.

Whether or not any offer letter issued on the basis of the purported acquisition is null and void.

The condition necessary for an offer letter to be issued is that the land to which it pertains must belong to the State. If an invalidity attends the acquisition of the land, it also attends the offer letter. Without a valid acquisition, there can be no valid Offer Letter. With the finding that the acquisition was void, declaring the offer letters to be invalid too is a natural consequence, for something cannot be put on nothing. An exercise of public power outside the provisions of a legal rule renders any action taken null and void. Invalidity attaches to everything done following such an exercise. *Mugwebie* v *Seed Co Ltd & Anor* 2000 (I) ZLR 93 (SC).

A case for a declaratory order.

Whether a declaratur is to be granted is a question of substance. It pertains to the merits of the application. The law relating to the grant of declaratory relief is set out under section 14 of the High Court Act. In summary, the applicant must have a direct and substantial interest in the subject matter of the suit, which could be prejudicially affected by

the judgment of the court. The interest must concern an existing, future, or contingent right. *See* ***Penelope Douglas Stone & Anor* v *CABS & Otrs*** HH-287/20**.**

Johnsen v *AFC* 1995 (I) ZLR 65 (H).

Ex p *Chief Immigration Officer* 1933 (I) ZLR 122 (S).

Munn Publishing (Pvt) Ltd v *ZBC* 1994 **(**1) ZLR 337 (S)

The court has discretion in granting such applications. In exercising that discretion, the court must be satisfied that the applicant is a person the statute refers to, and if it is, then whether the applicant is entitled to the declaratory order sought, that is to say, whether the case is a proper one for the exercise of the discretion conferred on it. *RK Footwear Manufacturers (Pvt) Ltd* v *Boka Booksales (Pvt) Ltd* 1986 (2) ZLR 209 (H).

Bulawayo Bottlers (Pvt) Ltd v *Minister of Labour, Manpower Planning and Social Welfare & Otrs* 1988 (2) ZLR 129 (H).

Shaban v *Culemborg Banking Corporation Ltd* 1962. (2) SA 450 (T).

The first respondent's conduct in this matter failed the legality test and must be declared so. I am therefore satisfied that the matter in *casu* meets the requirements of a declaratory order.

DISPOSITION

No notice was brought to the attention of the 2nd applicant or any of the affected parties before the farm's acquisition. Failure to give adequate notice to those who were affected by the decision to acquire their farm renders the decision of the 1st respondent arbitrary and in contravention of the law as set out in the relevant statutes. The 1st respondent's decision to acquire the farm ought to be set aside, and any offer letter issued to any of the other respondents by the 1st respondent consequent to the acquisition aforesaid is invalid and consequently null and void. The relief sought is merited. I accordingly make the following order.

ORDER.

1. The Notice of Acquisition of Agricultural Land under Section 72(2) of the Constitution of Zimbabwe being General Notice 3042 of 2020 appearing in the Zimbabwe Gazette on the 18th of December 2020 relating to the following pieces of land held under the following deeds of title:

   Deed of Transfer 1980/90, registered in the name of Kershelmar Farms (Private) Limited, in respect of certain piece of land situated in the district of Nyamandlovu being subdivision A of Subdivision B of Umguzan Block, measuring one hundred and ninety—five comma eight zero nine five (195,8095) hectares, and,

   Deed of Transfer 1980/90, registered in the name of Kershelmar Farms (Private) Limited, in respect of certain piece of land situated in the district of Nyamandlovu, being subdivision C of Subdivision B of Umguzan Block, measuring three hundred and fifty-eight comma one seven six eight (358,1768) hectares, be and is hereby declared to be null and void for want of compliance with provisions of sections 68 and 72 of the Constitution of Zimbabwe, 2013, as read with section 3 of the Administrative Justice Act, Chapter 10:28.

2. Any Offer Letter issued on the basis of the purported acquisition is null and void.

3. Costs of this application shall be borne by the respondents jointly and severally, one paying, the other to be absolved.

NDLOVU J.

Webb, Low & Barry Inc. Ben Baron & Partners, Applicants' legal practitioners.

Titan Law/Mlotshwa & Muguwudze, 4th Respondent's legal practitioners.

Liberty Mcijo & Associates, 5th Respondent's legal practitioners.

Cheda & Cheda Associates, 6th, 8th & 9th Respondents' legal practitioners.

Kossam Ncube & Partners, 10th & 11th Respondents' legal practitioners.